



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRWP No.6856 of 2026
DATE OF DECISION : 6th JUNE, 2026

Jarnail Singh

.... Petitioner

Versus

State of Punjab & others

.... Respondents

CORAM : HON'BLE MR. JUSTICE ROHIT KAPOOR

* * * *

Present : Mr. Bikramjeet Singh Jatana, Advocate for the petitioner.

Mr. Adeshwar Singh Pannu, AAG, Punjab.

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ROHIT KAPOOR, J. (Oral)

1. The instant petition has been filed under Article 226 of the Constitution of India read with Section 528 of BNSS, 2023 (earlier Section 482 Cr.P.c.) praying for the issuance of a writ in the nature of habeas corpus for releasing the detinue namely Lakhvir Singh, who is the son of the petitioner and is alleged to be presently illegally detained in Central Jail, Bathinda.

2. Brief facts leading to the filing of the instant petition are that FIR No.99 dated 30.04.2026 has been registered against the detinue and another co--accused namely Sanjogpreet Singh, at Police Station Nathana, District Bathinda, under Section 18(c) of the NDPS Act and Section 25 of the Arms Act. Allegation is that 74 grams of opium and a .30 bore pistol (licensed weapon) were allegedly recovered from the detinue. The Special Court Bathinda allowed the regular bail of the detinue vide order dated 02.06.2026 (Annexure P-1). In compliance of the directions contained in the said order, bail bonds were furnished on



behalf of the detenue which were accepted by the Judicial Magistrate First Class, Bathinda and vide order dated 04.06.2026 the release warrants were directed to be issued immediately.

3. Learned counsel for the petitioner contends that despite the fact that the bail application of the detenue has been allowed and release warrants stand issued, yet, the jail authorities of Central Jail, Bathinda, have not released him and he is being kept in illegal custody. It is submitted that the reason for the same, as informed by the Jail Authorities is that they have received production warrants to produce the detenue before the Court of the learned Special Judge, West District, Tees Hazari, Delhi, on 05.06.2026 in connection with FIR No.24 of 2026, under Sections 18, 23, 25, 29 of the NDPS Act registered at Police Station Crime Branch, West Delhi. Submission is that the detenue continues to illegally languish in jail despite the fact that there are no order of his arrest or remand in any other case. It is further submitted that the detenue has now been informed that he is to be produced before the Court at Delhi on 08.06.2026. Arguing that in the absence of any legal grounds, the detenue cannot be illegally kept in custody any further, it is prayed that appropriate directions be issued to the jail authorities, Central Jail, Bathinda to immediately release the detenue.

4. Notice of motion.

5. On the asking of the Court, learned State counsel accepts notice and on instructions from Sh. Sachinmeet Singh, Assistant Superintendent, Central Jail, Bathinda, submits that the production warrants dated 01.06.2026, directing the jail authorities to produce the



detenue before the court at Delhi on 05.06.2026, were received prior to the receiving of the release warrants. It is further submitted that the detenue has been produced before the Special Judge, Tees Hazari Court, on 05.06.2026, through video conferencing and it is submitted on oral instructions, that the detenue is required to be produced before the said court on 08.06.2026.

6. On a specific query by this court regarding the averment in the petition that there is no arrest or remand order against the detenue in any case, the learned State counsel is unable to deny the same.

7. In that view of the matter this court is of the considered opinion that any further incarceration of the detenue is wholly unwarranted and illegal. As a necessary consequence the instant petition is allowed and the Superintendent, Central Jail, Bathinda-respondent No.3 is directed to ensure the immediate release of the detenue from the District Jail, Bathinda.

8. The office is directed to communicate these orders to the Superintendent, Central Jail, Bathinda, forthwith.

6th June, 2026
'raj'

(ROHIT KAPOOR)
JUDGE

<i>Whether speaking/reasoned:</i>	<i>Yes</i>	<i>No</i>
<i>Whether Reportable:</i>	<i>Yes</i>	<i>No</i>